

25STCV19132 25STCV19132

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-21

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Case Number: 25STCV19132 Hearing Date: July 21, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/21/2026

CASE NUMBER: 25STCV19132

CASE NAME: LEMUEL E HAMPTON, et al. v. FCA US LLC, et al.

MOVING PARTY: Defendant FCA US LLC

OPPOSING PARTY: Plaintiffs Lemuel E Hampton and Linda Harrison

PROCEEDING: Demurrer with Motion to Strike

RULING SUMMARY: FCA US LLC's Demurrer is sustained. FCA US LLC's Motion to Strike is moot. The action is dismissed as to FCA.

Background

On June

30, 2025, Plaintiffs Lemuel E. Hampton ("Hampton") and Linda Harrison

("Harrison" and collectively "Plaintiffs") filed their Complaint against

Defendants FCA US LLC ("FCA"), and Los Angeles Chrysler Dodge Jeep Ram ("LA CDJR"),

alleging causes of action for (1) Violation of Subdivision (d) of Civ.

Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code §

1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § 1793.2

against FCA; (4) Breach of the Implied Warranty of Merchantability (Civ. Code

§§ 1791.1, 1794, 1795.5) against FCA; (5) Negligent Repair against LA CDJR; and (6) Fraudulent Inducement Concealment against FCA.

Plaintiffs

allege that on or about January 17, 2019 they entered into a warranty contract with FCA regarding a certified pre-owned 2018 Dodge Challenger with vehicle identification number 2C3CDZFJ6JH269370 (the "Subject Vehicle"), manufactured or distributed by FCA; the warranty contract included various warranties; defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including, but not limited to, an engine defect; FCA had a duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts; and FCA did not do so. Regarding LA CDJR, Plaintiffs allege negligent repair of the Subject Vehicle.

On

September 25, 2025, FCA filed a Demurrer with Motion to Strike as to the Complaint. The Demurrer was sustained without leave to amend in part as to the First, Second, and Third Causes of Action and sustained with leave to amend in part as to the Fourth and Sixth Causes of Action; and the Motion to Strike was deemed moot.

On March

16, 2026, Plaintiff filed his First Amended Complaint ("FAC"), alleging three causes of action for (1) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (2) Negligent Repair against LA CDJR; (3) Fraudulent Inducement Concealment against FCA. The FAC also includes Plaintiffs' repair history with the Subject Vehicle.

On

April 15, 2026, FCA filed this Demurrer with Motion to Strike. On May 19, 2026, LA CDJR filed its Answer. On July 08, 2026, Plaintiff filed his Opposition. On July 14, 2026, FCA filed its Reply.

MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party is required to meet and confer with the party who filed the pleading

demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41, 435.5.)

This requirement has been met. (See Decl. of Steven D. Park to Demurrer and Motion to Strike.)

LEGAL STANDARD

A.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded.

(*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

B.

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of

California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) 2222

C.

Leave to

Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 889.) 22 The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) 2

DISCUSSION

A.

Demurrer

FCA demurs to the First Cause of Action (Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) and the Third Cause of Action (Fraudulent Inducement Concealment).

1.

First Cause of Action (Breach of Implied Warranty of Merchantability) is Time-Barred.

FCA argues that Plaintiffs’ implied warranty claim expired after three months under Civ. Code section 1795.5(c) and, since Plaintiffs purchased the Subject Vehicle on January 17, 2019, the implied warranty at issue expired on April 17, 2019.

Plaintiffs argue that the defects for an implied warranty claim do not need to manifest within three months as the statute discusses that the duration of the implied warranty of merchantability shall be coextensive in duration with an express warranty which accompanies the consumer goods and, here, the Certified Pre-Owned ("CPO") warranty provides powertrain coverage for seven years. Plaintiffs cite to *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297 ("Mexia") to support their argument.

In Reply, FCA argues that *Mexia* and similar cases are now foreclosed by Civil Code section 1795.5(c), and that courts hold that this cap on limitations for used goods is not subject to tolling, delayed discovery or equitable extensions. FCA reiterates that, under Civil Code section 1795.5(c), the implied warranty expired no later than April 17, 2019.

*****Civil Code section 1795.5(c) provides:

The duration of the implied warranty of merchantability and where present the implied warranty of fitness with respect to used consumer goods sold in this state, where the sale is accompanied by an express warranty, shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable, but in no event shall such implied warranties have a duration of less than 30 days nor more than three months following the sale of used consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to such goods, or parts thereof, the duration of the implied warranties shall be the maximum period prescribed above.

In *Mexia*, the appellate court held that the duration provision of Civil Code section 1791.1(c) did not limit when a defect must be discovered for purposes of the implied warranty, but instead, limited the period during which the implied warranty existed: "[T]he plain language of the statute, particularly in light of the consumer protection policies supporting the Song-Beverly Act, make clear that the statute merely creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering latent defects or for giving notice to the seller." (Id. at 1301.) "The duration provision provides, in essence, that the duration of the implied warranty of

merchantability shall be the same as the duration of any reasonable express warranty that accompanies the product, but in no event shorter than 60 days or longer than one year. (Civ. Code § 1791.1(c).) There is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period.” (Mexia, supra, 174 Cal.App.4th at 1310.) “The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. . . . Indeed, ‘[u]ndisclosed latent defects . . . are the very evil that the implied warranty of merchantability was designed to remedy.’ . . . In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Id. at 1304-1305.)

Mexia concerned an argument that conflated the duration of the implied warranty (one year), with the statute of limitations (four years). Mexia held that a latent defect that existed at the time of sale could constitute a breach of the implied warranty because the breach (of unmerchantability) occurred within one year, but if discovered outside of the year could still form the basis of a claim, if brought within the four-year limitation.

In this action, the issue is with a used CPO Subject Vehicle. This turns the focus to the section of Civil Code section 1795.5(c), which reads: “. . .but in no event shall such implied warranties have a duration of less than 30 days nor more than three months following the sale of used consumer goods to a retail buyer. . . .” As FCA correctly points out, the duration of the implied warranty expired no later than April 17, 2019. The statute of limitations is four years. Thus, the question for this Court is: Can Plaintiffs bring a claim for breach of implied warranty when the implied warranty expired no later than April 17, 2019; the statute of limitations for a breach of implied warranty is four years, and Plaintiffs filed their Complaint on June 30, 2025? Under both Mexia and Civil Code section 1795.5(c), the answer is “no,” as four years from April 17, 2019 is April 17, 2023. Even if Plaintiffs discovered the alleged latent defect that existed at the time of sale could constitute a breach of the implied warranty, they did not bring this claim until over two years past the four-year statute of limitations period.

This deficiency cannot be rectified by amendment due to the application of the statute of limitations.

2.

Third Cause of Action (Fraudulent Inducement Concealment) is Time-Barred.

FCA asserts that tolling doctrines cannot apply to Plaintiffs' fraudulent concealment claim as courts hold that tolling doctrines require specific facts showing that a defendant induced Plaintiffs to delay suit or concealed facts that could not have been discovered earlier despite reasonable diligence. FCA argues that Plaintiffs' assertions regarding the Subject Vehicle are conclusory and insufficient to toll the statute of limitations or plead a viable fraud theory.

Plaintiffs contend that FCA's demurrer to the Third Cause of Action relying on the statute of limitations (1) is based on the premise that the cause of action accrued and ran on the date Plaintiff's purchased the Subject Vehicle, and (2) fails because the fraudulent inducement concealment claim does not run from the date of sale.

In Reply, FCA argues that Plaintiffs' fraud claim is time-barred because Plaintiff does not plead facts that show the time and manner of discovery, and circumstances demonstrating inability to have discovered the fraud earlier despite reasonable diligence. FCA highlights that Plaintiffs' Complaint concedes that at least two repair attempts occurred by July of 2021, putting Plaintiffs on notice.

To invoke the delayed discovery rule, Plaintiffs must specifically allege "(1) the time and manner of discovery" and (2) "the inability to have made earlier discovery despite reasonable diligence." (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 297.) Moreover, the doctrine of fraudulent concealment applies to toll the Third Cause of Action only if there are facts showing that FCA prevented Plaintiff from discovering the existence of the alleged defect, the E-Torque Defect, at an earlier time. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192 [doctrine of fraudulent concealment tolls limitations where defendant through deceptive conduct caused claim to grow stale].)

Plaintiffs have alleged that the Subject Vehicle was brought in for repairs around: (1) June 7, 2021; (2) July 20, 2021; (3) June 9, 2022; (4) June 27, 2022; (5) August 29, 2022; (6) January

29, 2025. (See FAC ¶¶ 18-23.) While neither party provides discussion on how many repair attempts should be made to put a reasonable person on notice, the court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 (“Dhital”) found three occasions for the same type of problem (i.e., transmission) to be reasonable. (Id. at 833; see also 2018 U.S. Dist. LEXIS 208129/2018 WL 6460196 at 5 [persuasive authority; “A reasonable person would be on inquiry notice when the same repair for the same problem is ineffective three times in a row.”]) As alleged, the issues with the Subject Vehicle on or around June 7, 2021; July 20, 2021; and June 27, 2022 include issues where the Subject Vehicle made noises while idling, shifting, or accelerating which the Court views as the same problem. (See FAC at ¶¶ 18-19, 21.) The June 9, 2022 repair was substantially different as it involved radiator replacement. (See id. at 20.) Therefore, whether the discovery rule applies or not, Plaintiffs were put on notice of the Subject Vehicle’s defects on at least June 27, 2022 and the delayed discovery rule would not apply past that date.

The statute of limitations for fraud is three years. (See Code Civ. Proc. § 338(d).) Three years from when Plaintiffs were put on notice is June 27, 2025 [June 27, 2022 + 3 years]. Plaintiffs did not file their Complaint until June 30, 2025. Accordingly, Plaintiffs Third Cause of Action is barred by the three-year statute of limitations under Code of Civil Procedure section 338(d).

This deficiency cannot be rectified by amendment due to the application of the statute of limitations.

Accordingly, FCA’s Demurrer is sustained.

B.

Motion to Strike

As the Court has sustained the Demurrer to both causes of action directed to FCA, the FAC contains no cause of action against FCA.

The Motion to Strike is moot.

Conclusion

FCA US

LLC's Demurrer is sustained. FCA US
LLC's Motion to Strike is moot. The
action is ordered dismissed as against FCA.

Date: 07/21/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court